IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Orders in the nature of Writs of Certiorari, Prohibition and Mandamus under Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

United Travels & Holidays (Private) Limited,
35th Floor,
West Tower Echelon Square,
World Trade Centre,
Colombo 01.

CA (Writ) App. No. 1069/2025

PETITIONER

Vs.

1. M. S. M. Nawas,
   Director,
   Department of Muslim Religious and Cultural Affairs,
   No. 180, T. B. Jayah Mawatha,
   Colombo 10.

2. Reyaz Mihular,
   Chairman,
   Hajj and Umrah Committee,
   Department of Muslim Religious and Cultural Affairs,

No. 180, T. B. Jayah Mawatha,
Colombo 10.

3. Y.L.M.Navavi,
   Member,
   Hajj and Umrah Committee,
   Department of Muslim Religious and Cultural Affairs,
   No. 180, T. B. Jayah Mawatha,
   Colombo 10.

4. Prof. M.S.M. Aslam,
   Member,
   Hajj and Umrah Committee,
   Department of Muslim Religious and Cultural Affairs,
   No. 180, T. B. Jayah Mawatha,
   Colombo 10.

5. Mr. T.K. Azoor,
   Member,
   Hajj and Umrah Committee,
   Department of Muslim Religious and Cultural Affairs,
   No. 180, T. B. Jayah Mawatha,
   Colombo 10.

   M. Rushdi Khalid,
   Member,
   Hajj and Umrah Committee,
   Department of Muslim Religious and Cultural Affairs,
   No. 180, T. B. Jayah Mawatha,
   Colombo 10.
   [Substituted 5th Respondent]

6. M.S.F. Haqque,
   Member,
   Hajj and Umrah Committee,

Department of Muslim Religious and Cultural Affairs,
No. 180, T. B. Jayah Mawatha,
Colombo 10.

M.A.M. Zakwan,
Member,
Hajj and Umrah Committee,
Department of Muslim Religious and Cultural Affairs,
No. 180, T. B. Jayah Mawatha,
Colombo 10.
[Substituted 6th Respondent]

7. Hon. Prof. Hiniduma Sunil Senevi,
Minister of Buddhasasana, Religious and Cultural Affairs,
Ministry of Buddhasasana, Religious and Cultural Affairs,
No. 135,
Srimath Anagarika Dharmapala Mawatha, Colombo 07.

8. Hon. Muneer Mulaffer,
Deputy Minister of Religious and Cultural Affairs,
No. 180, T. B. Jayah Mawatha,
Colombo 10.

9. Mr. W.P. Senadheera,
Secretary,
Ministry of Buddhasasana, Religious and Cultural Affairs,
No. 135,
Srimath Anagarika Dharmapala Mawatha, Colombo 07.

10. Hon M.T.M Laffar,
Rtd Judge of the Court of Appeal,
Member,

Independent Panel of Inquiry for Hajj Complaints 2025,
Department of Muslim Religious and Cultural Affairs,
No. 180, T. B. Jayah Mawatha,
Colombo 10.

11. A.A.M. Illiyas P.C.,
Member,
Independent Panel of Inquiry for Hajj Complaints 2025,
Department of Muslim Religious and Cultural Affairs,
No. 180, T. B. Jayah Mawatha,
Colombo 10.

12. M.B. Luthufur Rahman,
Member,
Independent Panel of Inquiry for Hajj Complaints 2025,
Department of Muslim Religious and Cultural Affairs,
No. 180, T. B. Jayah Mawatha,
Colombo 10.

13. Honourable Attorney General,
Attorney General's Department,
Hulfsdorp,
Colombo 12.

14. Aalam International Tours and Travels,
No. 20/1, Kothalawela Avenue,
Colombo 04.

15. Aathika Hajj Travels,
No. 18/1, Matale Road, Katugastota.

16. Abdullah Travels,
No. 143, Kudugala, Ambethenna,
Akurana.

17. Ajwa Travels,

No. 20/2/A/1 Gothami Mawatha,
Wellampitiya.

18. Al-Aqsa Global Pvt Ltd,
No. 86A-1/1, Watarappola Road,
Mount Lavinia.

19. Al Bayan Travels and Tours Pvt Ltd,
Kattupalli Road, Main Street, Eravur.

20. Al Hikma Hajj Service Pvt Ltd,
No. 219, Colombo Road, Kaluwella,
Galle.

21. Al Rifa Travels,
No. 52, Katugahawatha, Dewanagala,
Mawanella.

22. Al Safaa Travels and Tour Pvt Ltd,
No. 26, Vajira Road, Colombo 04.

23. Al Zamil Lanka Tours and Travels Pvt Ltd,
No. 38/1/2, Symonds Road, Maradana,
Colombo 10.

24. Al Hijra Travels and Tours Pvt Ltd,
No. F-18, Hijragama, Hemmathagama.

25. Al Jannah Travels And Tours Pvt Ltd,
No. 39,3/2, Galleface Terrace,
Kollupitiya, Colombo 03.

26. Al Kaswa Pvt Ltd,
No. 09, Colombo Road, Madurankuli.

27. Al Maccam Travels and Tours,
No. 15, Main Street, Madurankuli.

28. Al Maasha Hajj Travels,
No. 126, Kandy Road,
Madawala Bazaar.

29. Al Mualla Travels and Tours Pvt Ltd,
    No.75/1A, Sheikh Jamaldeen Road,
    Beruwala-12070.

30. Al Ziyarah Tours and Travels Pvt Ltd,
    No. 118/2, Colombo Road,
    Mahamodara, Galle.

31. Amaanath Tours and Travels,
    No. 229,2/9, 2nd Floor,
    Santhosh Plaza, Main Street,
    Colombo 11.

32. Ameen Travels and Tours Pvt Ltd,
    No. 133/17, City Centre, Main Street,
    Kurunegala.

33. Amja Travels Pvt Ltd,
    No. 22, Dias Place, Colombo 12.

34. Asja Travels and Tours Pvt Ltd,
    No. 320D, Main Road, Kalmunai 04.

35. Asma Travels and Tours,
    No. 14, Ibrahim Mawatha, Mawanella.

36. Aysha Travels and Tours Pvt Ltd,
    No. 97, Paragasdeniya, We-Uda.

37. Azaar Travels Pvt Ltd,
    No. 221/1/1, Madawala Road,
    Katugastota.

38. Azmy Travels And Tours Pvt Ltd,
    No. 235 1/1, Grandpass Road,
    Colombo 14.

39. Bakkah Travels And Tours Pvt Ltd,
    No. 91/B, Old Galle Road Road,
    Henamulla, Panadura.

40. Barakath Travels and Tours Pvt Ltd,

No.53/1, Royal Gardens,
Royal Gardens Road, Rajagiriya.

41. Binnooriya Hajj Umrah Services,
No. 204/1, Grandpass Road,
Colombo 14.

42. Buraque Travels Pvt Ltd,
No. 62, Dematagoda Road,
Colombo 09.

43. Careem Lanka Travels And Tours Pvt Ltd,
No. 95, Chattam Street, Colombo 01.

44. East Gate Travels,
No. 189, Main Street, Oddamavadi.

45. Eigen Weg Travels and Tours Pvt Ltd,
No. 67/1/1, Galle Road Dehiwala.

46. F & F Travels,
No. 84, Pethigewala Road,
Madige Galagedara, Kandy.

47. Fahamas Travels,
No. 47, Lukmanjee Square,
Colombo 14.

48. Fair Travels,
No. 76/1, Matale Road, Akurana.

49. Farha Travels Pvt Ltd,
No. 12A, 1/1, Mosque Lane,
Watarapola Road, Mount Lavinia.

50. G.I. Travels,
No. 43, Kanampitiya Road, Galle.

51. H.M.H. Hajj Travels & Tours,

No. 01, Mal 8th Street, Sammanthurai.

52. Hathee Travels Pvt Ltd,
No. 30, Mudaliyar Road,
Akkaraipattu-17.

53. Hafsa Travels & Tours Pvt Ltd,
No. 91-1/1 Chatham Street,
Colombo 01.

54. Hajara Travels Pvt Ltd,
No. 49, Abdul Gafoor Mawatha,
Colombo 03.

55. Haleem Lanka Pvt Ltd,
No. 61, Mosque Road, Kirungadeniya,
Mawanella.

56. Hamas Hajj Travels,
No. 665/1/B, Awissawella Road,
Wellampitiya.

57. Hamdhan's Pvt Ltd,
No. 95, Ambagamuwa Road,
Gampola.

58. Ilma Hajj Services & Travel Operators,
No. 02A, Ground Floor,
Deanston Place, Colombo 03.

59. Imarah Travels & Tours Pvt Ltd,
No. 40/1 A, Hospital Road, Dehiwala.

60. Iqra Travels & Tours Pvt Ltd,
No. 119, 1/1, Galle Road, Colombo 04.

61. Island Travels,
No. 71/24,
Citi Plaza Shopping Complex,
Colombo Road, Kandy.

62. Kanzulla Haj Travels,
    Samsun Jewellery, Main Street,
    Kepitigal Road, Rideegama.

63. Kattankudy Mosque Federation Hajj Travels and Tours,
    No. 01, Meththai Palli Road,
    Kattankudy-03.

64. Khairaz International Travels and Tours,
    "Khairaz Complex",
    No. 298,
    George R. De Silva Mawatha,
    Kotahena, Colombo 13.

65. Khakiya Travels and Tours,
    No. 60B, Green Lane, Kotahena,
    Colombo 13.

66. MHK Travels,
    No. 201-1/1,
    City Arcade Building, 1st Floor,
    Galle Road, Beruwala.

67. M.N.Travels and Tours,
    No. 567/A, Marawa, Atulugama,
    Bandaragama.

68. M.P.S. Hajj Travels,
    No. 161/A/1, Messenger Street,
    Colombo 12.

69. Madina Hajj Travels and Tours,
    No. 323, Maccamady Road,
    Maruthamunai-03.

70. Mahir Travels and Tours,
    No. 519/10, Rahumaniya Mawatha,

Siyambalagaskotuwa.

71. Maryam Hajj Umrah Travels and Tours,
    No. 83/1, Mal 11th Street,
    Malayadi Gramam 02, Sammanthurai.

72. Mina Travels and Tours Pvt Ltd,
    No. 78/2, Dias Place, Gunasinghapura,
    Colombo 12.

73. Moulana Travels and Tours Pvt Ltd,
    No. 135 E1, Galle Road, Dehiwala.

74. Multhazam Enterprises and Travels,
    No. 475 B/1, Library Road,
    Sainthamaruthu-16.

75. Muna Travels & Tours,
    No. 53, 1st Floor,
    Jayantha Weerasekara Mawatha,
    Colombo 10.
76. N.M. Travels and Tours Pvt Ltd,
    No. 573-1/2, Habib Bank Building,
    Galle Road, Colombo 06.

77. Noor Madina Travels & Tours Pvt Ltd,
    No. 52/6/3, Main Street, Malwana.

78. Nowfar Asian Travels and Tours Pvt Ltd,
    No. 173/1/1, Galle Road, Beruwala.
79. Ramla Travels,
    No. 389, 1st Floor, Kandy Road,
    Theliyagonna, Kurunegala.

80. Rashadi Travels,
    No.99/1, Saleem Complex,
    Dambulla Road, Ibbagamuwa.

81. Rasheediya Travels and Tours Pvt Ltd,

No. 01-1/2, 1st Floor, Deanston House,
Deanston Place, Colombo 03.

82. Rayyan Travels,
No. 86, Masjid Road, Puttalam.

83. Reema Hajj Travels and Tours Pvt Ltd,
No. 65, Main Street, Kattankudy-06.

84. Rifky Travels and Tours Pvt Ltd,
No. 256/1, Beach Road,
New Kattankudy-06.

85. Royal Al Fathima Travels,
No. 271, Main Street,
Kuttikarachi Kinniya -04.

86. Royal Travels and Holidays Pvt Ltd,
No. 01-A, One Galle Face Tower,
Colombo 02.

87. S.M.S. Travels and Tours,
No. 19/20, Abdulla Building,
Symonds Road, Maradana-10.

88. Safaa Travels and Tours,
No. 139C, Sri Saranangkara Road,
Dehiwala.

89. Safeway Travels and Tours,
No. 191/20-1/1, Sieble Garden,
High Level Road, Kirulapona,
Colombo 05.

90. Safra Travels & Tours Pvt Ltd,
No. F/L/G 4, Dias Place,
Gunasinghapura, Colombo 12.

91. Shahwan Travels and Tours Pvt Ltd,
No. 97, FC Road, Kattankudy-02.

92. Siddique Travels and Tours,
No. 60, 1st Lane, Anuradhapura Road,
Puttalam.

93. Sky Wing Travels and Tours Pvt Ltd,
No. 6,5/1, Josephs Lane, Colombo 04.

94. Sky World Travels Pvt Ltd,
F-21, Peoples Park Complex,
Colombo 11.

95. Suhair Hajj Travels,
No. 105B, Sheik Jamaldeen Road,
Beruwala.

96. Sunpower Travels Pvt Ltd,
No. 124, Level-03, Galle Road,
Colombo 06.

97. TGL Travels and Tours Pvt Ltd,
No. 90, Chattam Street, Colombo 01.

98. The Global Travels & Leisure Pvt Ltd,
No. 653, Maradana Road, Colombo 10.

99. The Traveller Global Pvt Ltd,
UG-95, Peoples Park, Colombo 11.

100. Travel Data Tours and Travels Pvt Ltd,
No. 09, School Lane, Colombo 03.

101. Traveller Global Destination and Leisure Holidays Pvt Ltd,
No. 70/14 J, Lucky Plaza,
St. Anthoneys Mawatha, Colombo 03.

102. Ummul Qura Travels and Tours Pvt Ltd,
No. 307 A, Makkamady Road,
Maruthamunai-03.

103. Yara Travels Pvt Ltd,
No. 04, Town Mosque Biz Complex,
Akkaraipathu-02.

104. Zahiya Travels and Tours,
No. 93,1/1, Kumaradhasa Place,
Wellampitiya.

105. Zam Zam Hajj Travels,
No. 162, Al-Munawwara Road,
Akkaraipattu-04.

106. Zumra Travels and Tours,
No. 70, 2nd Floor, Kandy Road,
Kurunegala.

RESPONDENTS

Before: Dr. D. F. H. Gunawardhana, J.

Counsel:

Dilumi De Alwis with Maneesha D. Senanayake instructed by Amila Kumara for the Petitioner.

Manohara Jayasinghe, D.S.G., for the 1st, 8th, 9th, and 13th Respondent.

Hejaaz Hisbullah with Shifan Maharoof and Oshadi Hapuarachchi instructed by Tharmarajah Tharmaja for the 2nd, 3rd, 4th, and 11th Respondents.

Argued on: 07.05.2026 and 18.05.2026

Delivered on: 30.10.2026

Dr. D. F. H. Gunawardhana, J.

Judgement

Introduction

According to the Islamic religion, it rests on five pillars. They are, the declaration of the faith in one God, Allah, and that Prophet Muhammad is the last Prophet; the five daily prayers, known as Salat; the giving of donations to the poor, known as Zakat; fasting during the holy month of Ramadan; and, lastly, the pilgrimage to Mecca (Makkah), known as Hajj.

The pilgrimage made to Mecca (Makkah) is performed during the last holy month of the Islamic calendar every year. The entire period of the pilgrimage covers almost one month, and every person who professes the religion of Islam is expected to perform this pilgrimage at least once during his lifetime, if he is physically and financially able to do so. Therefore, Hajj is one of the five pillars upon which the religion of Islam rests.

The Petitioner claims that he is a travel agent, being a body corporate incorporated under the Laws of Sri Lanka, and operates as a travel agent, with its main business being the organization and operation of Hajj and Umrah pilgrimages to the Holy city of Mecca (Makkah). He claims that it has been operating since the year 2018 and that, in fact, the 1st Respondent permitted and licensed it to operate during the years 2022 and 2023 as a Hajj pilgrimage operator and an Umrah pilgrimage operator.

Factual matrix

There is no statutory framework to regulate or deal with the operations of Hajj/Umrah pilgrimages.

There had been two Fundamental Rights applications bearing No. 345/2006 and 500/2012. Pursuant to the directions given by the Supreme Court in the said applications in 2013, a set of guidelines were prepared and implemented through the Muslim Religious and Cultural Affairs Department; the said guidelines are so laid down and approved, and now implemented by the Hajj Committee.

The said Committee comprises of the Director of the Department of Muslim Religious and Cultural Affairs, along with certain other appointed members.

The 1st Respondent is the Director of the Department of Muslim Religious and Cultural Affairs, whilst the 2nd Respondents is the Chairman of the Hajj and Umrah Committee of the Department of Muslim Religious and Cultural Affairs (hereinafter referred to as the "Hajj Committee") and the 3rd to 6th Respondents are its members thereof. The 7th Respondent is the Minister of Buddhasasana, Religious and Cultural Affairs, while the 8th and 9th Respondents are its deputy minister and secretary, respectively. The 10th to 12th Respondents are Members of the Committee of Independent Panel of Inquiry, appointed by the said Hajj Committee for a special purpose to look into the complaints made against the Petitioner, while the 14th to 106th Respondents are persons who were qualified to be called for the interview for the purpose of the issuance of licenses for Hajj operations for the years 2025 and 2026.

Annually, the pilgrims are expected in Saudi Arabia to visit the Holy City of Mecca (Makkah) for the purpose of performing Hajj and Umrah. Hajj is performed during the last month of every year of the Islamic calendar, which is called 'Holy Month' or 'Hajj Month'. To regulate the operations and provide proper accommodations and other necessary facilities, the Saudi Arabian Government allocates visa quotas to different countries, depending on the relationship and standing of the

population professing in the religion of Islam of such country; thus, Sri Lanka also gets its annual Hajj visa quota directly from the Saudi Arabian Government.

However, up until 2013, till the Supreme Court decided to give directions to set out certain guidelines to regulate the pilgrimages arranged by the local travel operators, there had been no guidelines or statutory provisions. Thus, the guidelines so set out pursuant to the directions given by the Supreme Court in the said two Fundamental Rights Applications, now stands as the only guidelines that fills the vacuum created in the background of the non-existence of any statutory framework. Therefore, every travel operator has to follow the guidelines in pursuing applications to obtain relevant quotas allotted to them by the Hajj Committee; this process starts after the last month of the previous year's pilgrimage is over.

Thus, applications are called for, and after the applications are received, the applicants are called for an interview or conference, on which, depending on their suitability and marks given to them, the applicant travel operators are selected for the purpose of the allotment of their quotas; the said marks are given according to the marking scheme given in Annexture IV to the said guidelines. This includes;

- Registration (22 marks) - includes company registration, previous year Hajj license, tourist board license, civil aviation, IATA license;
- Physical capabilities (19 marks) - includes active management with office premises, quality of guide, efficient group leader, availability and quality of logistics, and medical facilities
- Financial capabilities (20 marks) - includes bank reference, proof of income tax payment, strength of capital assets, and audit reports
- Experience (14 marks)

- Reliabilities (15 marks)
- Special facilities (10 marks) - includes having contingency funds, program for Hajj orientation training, arrangement for training on ethics of congregation and social living, grievance handling, and handbook on service delivery

Thereafter, once the allottee of quotas is selected, they are entitled to send the pilgrims to the Holy City of Mecca (Makkah), and they are responsible for the ground operations and guidance of the pilgrims in Mecca (Makkah), including the hotel accommodations and full coverage of the entire month of Hajj during their pilgrimage.

When there are allegations against such operators, the Hajj Committee has the power to deal with them.

The Petitioner's complaint

According to the Petitioner, the Petitioner has been operating as a travel agent, particularly as a Hajj and Umrah travel agent, during the years 2022 and 2023. To establish this fact, the Petitioner has annexed the documents marked as **P1(b)**, **P1(c)**, **P1(d)**, and **P1(e)** to the Petition.

In addition to that, the Petitioner has annexed the document marked as **P1(x)**, containing reviews of the pilgrims to whom the Petitioner rendered services, appreciating the Petitioner's services.

Further, the Petitioner also claims that he is a Class A transport operator. To establish this fact, the Petitioner has annexed the document marked as **P1(g)** to the Petition.

Accordingly, the Petitioner who claims to have operated Hajj pilgrimages for about twenty years, and after the incorporation as a body corporate, it has operated under the allocations given for three years as a travel operator; however, there had been several allegations against the Petitioner, and

therefore, the Hajj Committee had appointed a Panel to inquire into the allegations against the Petitioner, comprising of the 11th to 13th Respondents.

Though there is a recommendation made by the said Respondents after they had inquired into the allegations against the Petitioner, the Hajj Committee had nevertheless failed, neglected or refused to call the Petitioner for an interview to consider whether any allocations should be made or not. In addition to that, the Hajj Committee not given any allocations for the calendar year of 2026 to the Petitioner to operate Hajj pilgrimages. Additionally, for the purpose of Umrah pilgrimages, the names of the selected or recommended travel operators were published, excluding the Petitioner's name.

Therefore, the Petitioner has entertained certain grievance and comes before this Court, challenging the said decision of the 2nd to 6th Respondents, on the basis of *ultra vires*, irrationality, *mala fide*, illegality, capriciousness, unreasonableness, and unfairness for failing to call the Petitioner for an interview for the purpose of considering applications to operate Hajj pilgrimages and failure to publish the Petitioner's name for the purpose of Umrah pilgrimage.

Accordingly, the Petitioner seeks *inter alia* the following relief by this Application;

> *c. Call for and grant and issue a Mandate in the nature of a Writ of Certiorari quashing the decision of the 1st to 6th Respondents as contained in the letter dated 02.10.2025 marked as P23, and/or their successors in office to refrain from calling the Petitioner for Umrah or Hajj interviews, until the cases pending against the Petitioner in the Magistrate's Court are resolved.*
>
> *d. Grant and issue a Mandate in the nature of a Writ of Certiorari quashing the letter dated 02.10.2025 marked as P23 containing the decision of the 1st to 6th Respondents and/or their*

successors in office to refrain from calling the Petitioner for Umrah or Hajj interviews, until the cases pending against the Petitioner in the Magistrates Court are resolved.

e. Call for and grant and issue a Mandate in the nature of a Writ of Certiorari quashing the Announcement dated 27th October 2025 marked as P36 above setting out the names of the 14th to 106th Respondents as selected Hajj Travel Operators to take pilgrims for the Hajj Pilgrimage 2026 and/or the document and/or communication, in whatever form or platform, of the 1st to 6th Respondents and/or their successors in office and/or their servants and/or agents thereof, and/or any subsequent announcement to be made setting out any further selections of the Hajj Travel Operators to take pilgrims for the Hajj Pilgrimage 2026, without affording the Petitioner an interview to be assessed under the said Guidelines marked P2A;

f. Call for and grant and issue a Mandate in the nature of a Writ of Certiorari quashing any decision of the 1st to 6th Respondents and/or any one or more of the Respondents and/or their successors in office and/or their servants and/or agents thereof, to select the 14th to 106th Respondents as selected Hajj Travel Operators to take pilgrims for the Hajj Pilgrimage 2026, and/or any subsequent announcement to be made setting out any further selections of the Hajj Travel Operators to take pilgrims for the Hajj Pilgrimage 2026, without duly assessing the Petitioner under and in terms of the Guidelines to Regulate Hajj/Umrah Pilgrimages from Sri Lanka, as approved by the Hon. Supreme Court marked as P2A;

g. Call for and grant and issue a Mandate in the nature of a Writ of Certiorari quashing any decision of the 1st to 6th Respondents and/or any one or more of the Respondents and/or

their successors in office and/or their servants and/or agents thereof, not to register the Petitioner as a Umrah Operator for the year 2026;

h. Call for and grant and issue a Mandate in the nature of a Writ of Certiorari quashing any decision of the 1st to 6th Respondents and/or any one or more of the Respondents and/or their successors in office and/or their servants and/or agents thereof, not to call and duly assess the Petitioner for the registration as a Umrah Operator for the year 2026 under and in terms of the Guidelines to Regulate Hajj/Umrah Pilgrimages from Sri Lanka as approved by the Hon. Supreme Court marked P2A;

i. Grant Issue a Mandate in the nature of a Writ of Mandamus directing the 1st to 6th Respondents and/or any one or more of the Respondents to grant and facilitate for the Petitioner, an interview before a Special Interview Panel, and evaluate and assess the Petitioner for Hajj Tour Operators License for the Hajj Pilgrimage 2026, strictly in compliance with the Guidelines to Regulate Hajj/Umrah Pilgrimages from Sri Lanka as approved by the Hon. Supreme Court (produced marked P2A) and other relevant laws, with the necessary oversight and/or safeguards and/or guarantees to ensure that the Petitioner is granted a fair, unbiased and independent hearing/interview;

j. Grant Issue a Mandate in the nature of a Writ of Mandamus directing the 1st to 6th Respondents and/or any one or more of the Respondents to grant and facilitate for the Petitioner, an interview before a Special Interview Panel, and evaluate and assess the Petitioner for Umrah Tour Operators License for the Hajj Pilgrimage 2026, strictly in compliance with the Guidelines to Regulate Hajj/Umrah Pilgrimages from Sri Lanka as approved by the Hon. Supreme Court (produced marked P2A) and other relevant laws,

with the necessary oversight and/or safeguards and/or guarantees to ensure that the Petitioner is granted a fair, unbiased and independent hearing/interview;

The Respondents' Objections

The 1st, 8th, 9th, and 13th Respondents have filed their respective Statement of Objections; according to which, they admitted that there is a guideline to regulate the Hajj Pilgrimage. However, they deny the existence of guidelines to regulate the Umrah Pilgrimage.

Further, the said Respondents state that the said guidelines also contemplate the appointment of separate independent panels to entertain complaints made by the pilgrims with regard to actual facilities, accommodations, and other matters relating to the Pilgrimage.

Having said so, since the Petitioner had repeatedly committed delinquent acts on multiple occasions, multiple complaints have been received by the Respondents, which justifiably banned the Petitioner from organising Hajj tours.

Further, it is their position that due to the multiple complaints of fraud and failure to perform the obligations as a travel operator to the pilgrims on Hajj tours organised by the Petitioner, compelled the Respondents to take such drastic actions against him as well as to summon him before an Independent Panel appointed under the Hajj guidelines to inquire into the allegations against the Petitioner.

Having stated so, the said Respondents categorically deny any dereliction of duties, and any irrationality, illegality, and *ultra vires* nature of their decisions taken; further, they state that their decisions are only *intra vires*.

Arguments

The learned Counsel for the Petitioner, Ms. Dilumi De Alwis, argues that the Respondents have failed to call the Petitioner for the interview for the purpose of issuing Hajj travel operator licenses and quotas. Having referred to Rule 3 under the "The Hajj Travel Operator" of the Hajj Guidelines marked as **P2a**, once an application is submitted, it is a must that the Hajj Committee calls such an application for an interview, which the Respondents have failed, neglected and purposely avoided in calling the Petitioner for such an interview for the issuance of licenses to operators for the Hajj Pilgrimage 2026. Therefore, the Respondents have not only violated the rules of natural justice, but also Articles 12(1) and 13(5) of the Constitution, where only some of the parties who had submitted applications were called, excluding the Petitioner.

In addition to that, it is argued on behalf of the Petitioner that without even calling for an interview, the names of the Umrah Pilgrimage operators of 2026 have been published; however, in the said list of operators, the Respondents have failed, neglected or purposely avoided to mention the Petitioner's name. Therefore, they have violated Articles 12 and 13 in this respect as well.

The next argument advanced on behalf of the Petitioner is that the Petitioner had legitimate expectation to at least be called for an interview once the application was submitted to the Respondent.

In those circumstances, it is argued on behalf of the Petitioner that since the Petitioner should have at least been called for an interview prior to any rejection or making any other decision, not calling the Petitioner for an interview is a matter that the Respondents have assumed to have discretion in not calling the Petitioner, and therefore, had decided to shortlist the applicants who they should

call for an interview excluding the Petitioner. This itself shows that their decision not to call the Petitioner for an interview is *ultra vires*.

It is also submitted that the Respondents have failed, neglected or purposely avoided to call the Petitioner on flimsy reasons that there are allegations levelled against the Petitioner made by certain pilgrims who had obtained the services of the Petitioner in the past. The Respondents have assumed the discretionary power to decide not to call the Petitioner for interviews until those pending cases are settled or concluded.

On the other hand, it is argued for and on behalf of the 1st, 8th, 9th, and 13th Respondents by the learned Counsel Mr. Jayasinghe, D.S.G., that though the Hajj Guidelines is termed as 'guidelines' set out for implementation by the Supreme Court, it is termed as "Hajj and Umrah Guidelines", when in fact, there are no guidelines applicable for Umrah pilgrimages because performing of Umrah occurs at any time other than for the Hajj Month, namely, the last month of the Islamic calendar.

Furthermore, Mr. Jayasinghe argues that the fraudulent conduct of the Petitioner justifies the Hajj Committee's decision not to call him for the interview.

It is the argument of Mr. Hisbullah, the learned Counsel for the 2nd, 3rd, 4th, and 11th Respondents, that since the Petitioner's conduct on earlier occasions had given rise to questions on its capacity to mobilise the logistical facilities as it has already failed to support the pilgrims (the clientele) with the necessary ground facilities in Saudi Arabia, the Respondents are justified for not calling it for an interview.

Hajj rituals

During Hajj, rituals have to be continuously performed in Mecca (Makkah) for at least four days, and there is a special dress code for the men and women to be worn during the performance of Hajj. During the Holy Month, there is a huge competition among those who profess Islam to obtain visas to visit the holy cities of Mecca (Makkah) and Medina; however, for the purpose of regulating the accommodations and the performance of rituals, the Saudi Arabian Government has taken steps to implement a quota system to different countries, depending on the relationship and Islamic population standing; the performing of Umrah also depends on the time, funds, and facilities available to such a pilgrim. As far as Hajj is concerned, there are a lot of rituals to be performed in the pilgrimage, including paying homage to Kaaba, which is the holiest site in the Islamic world, and the Hajj pilgrims have to visit a few other places to perform other rituals of the pilgrimage including *Ihram* (dress code), *Mina*, *Arafat*, *Muzdalifah*, and *Rami*.

Accordingly, as referred to above, the Supreme Court had decided to prepare and issue the Hajj Guidelines. However, there are no such compulsory guidelines for Umrah since it is only a truncated pilgrimage and does not require such strict rituals to be performed. Hajj ends with the throwing stones at the *shaitaan* represented by three special pillars. Thus, the performance of Hajj is longer than Umrah.

Thus, though the guidelines in **P2a** is termed as the "Hajj and Umrah Guidelines"; therefore, if at all, the Petitioner can only complaint that it has not been called for the interview with regard to the issuance of visa quotas and operator licenses for the Hajj Pilgrimage.

Now I will consider whether the refusal to call the Petitioner for the interview is justified.

Justified decision of the Respondents

According to the Guidelines given, there is a certain marking scheme adopted. The Petitioner claims he should have been called for the interview, even if that meant that he will be entitled to receive only low marks at the interview. Nevertheless, the Petitioner has forgotten the fact that there are serious allegations levelled against him, and based on those serious allegations, there are several pending cases, and therefore, the Respondents have decided not to call the Petitioner for the interview.

As mentioned above, Hajj is a solemn religious observance, where travel operators must have proper logistical facilities arranged for when the pilgrims of a country to travel to Saudi Arabia for the performance of Hajj. For that purpose, the travel operators must be able to mobilise all the necessary ground support, and their agents in Saudi Arabia to have all the arrangements in place for accommodations, transport, and all other logistical facilities, including the performance of the rituals which includes *Ihram* (dress code), *Mina*, *Arafat*, *Muzdalifah*, *Rami*, *Nahr* (the sacrifice of animals), *Halaq* and *Taqsir* (shaving and cutting of the hair), and *Tawaf* and *Sa'ee* (the circumambulation and travelling back and forth around the Kaaba and between the Safa and Marwah mounts), that occur at different locations including Mecca (Makkah), Mina Valley, Plain of Arafat and Muzdalifah, and Jamarat.[1]

The Petitioner's conduct

Therefore, if the Hajj travel operators fail to provide by mobilising such pre-arranged logistical support in Saudi Arabia for the pilgrims to perform their rituals, the pilgrims will be stranded.

[1] His Eminence Maulana Alhaj Muhammad Ibrahim Kushtar Siddiqui Qadri Razvi, *On the Holiest Earth of Islam* (Sunni Razvi Society).

There are several complaints against the Petitioner, who had failed to provide the proper facilities to the pilgrims who went on his quota after having paid so much of their hard-earned accumulated money for a once-in-a-lifetime opportunity to perform Hajj. Those who have been stranded in Saudi Arabia have made several complaints against the Petitioner.

Having considered the fact that there are unresolved matters pending before courts, the Respondents had decided not to call the Petitioner for the interview because calling him for the interview will itself be tantamount to not only wasting their time and money but also setting up a bad example for the future operators to follow suit.

On a perusal of the relief sought by the Petitioner as referred to above, most of them are in relation to the Hajj Pilgrimage and for not calling it for the interview for the 2026 Hajj Pilgrimage; however, the 2026 Hajj Pilgrimage is now also over, and therefore, calling it for an interview only becomes an academic interest now. Therefore, I do not see any justification in granting such relief, even if the Petitioner has good grounds.

Further, the second main relief that the Petitioner has sought is with regard to the Umrah Pilgrimage. Though there is no proper procedure laid down for the regulation of the operations of the Umrah Pilgrimage, by publishing the names of the qualified operators, the Respondents have indicated to the world the names of the reliable operators who have not failed to perform their duties as operators. Thus, there is no erroneous nature in publishing the said list. Therefore, the actions taken by the Respondents are justified.

As such, to discourage such errant operators in the future, the Respondents have taken such drastic measures, which is justifiable in this case as far as the Petitioner is concerned.

However, the dismissal of this Application should not deprive the Petitioner to be able to submit an application afresh and be called for the relevant interview after all the pending matters against him have been resolved.

Conclusion

Accordingly, I dismiss this Application, without costs.

JUDGE OF THE COURT OF APPEAL